

Tab 1

MANAGEMENT AGREEMENT

THIS MANAGEMENT AGREEMENT (the “Agreement”) is entered into by and between Hello Gorgeous P.C., an Illinois limited liability company (“Manager”), and **Mukesh Arora MD** an Illinois professional limited liability company (“Provider”) to be effective August 1st, 2026 (the “Effective Date”).

W I T N E S S E T H:

WHEREAS, Manager is in the business of providing certain management and administrative services to healthcare providers in a similar business and profession as Provider;

WHEREAS, Provider is in the business of operating an outpatient clinic located at 690 D Terra Cotta Av Crystal Lake IL 60014 to provide certain designated services through health care providers duly licensed in the State of Illinois and is owned by Physician; and

WHEREAS, Manager and Provider wish to enter into this Agreement whereby Manager will provide certain administrative and management services to Provider, all on the terms and conditions as set forth herein.

NOW, THEREFORE, in consideration of the mutual promises set forth below, the parties agree as follows:

1. Provider Services. Provider will provide medical services of the type and kind as determined by Provider (collectively, the “Provider Services”). All Provider Services shall be provided through individuals duly-licensed to provide such services in the State of Illinois. The hours of operation of Provider shall be as determined by the parties and as allowed by the availability of licensed personnel. This Agreement is exclusive and Provider may not receive the same or substantially the same services as provided by Manager other than from Manager during the term of this Agreement.

2. Management Services. Provider hereby appoints Manager as its sole and exclusive manager and administrator of the non-medical functions and services that are required in connection with the provision by Provider of the Provider Services, as further set forth below, and to perform such other services required for the proper management of Provider’s operations as the parties may agree to in writing from time to time (collectively, the “Management Services”). Manager agrees to accept responsibility for such Management Services as hereinafter provided. Nothing in this Agreement shall be construed to prohibit Manager from subcontracting its Management Services obligations to any other person or entity or from providing services on behalf of other persons or entities. The list of Management Services to be provided by Manager are as listed on Exhibit A, which is attached hereto and incorporated herein.

3. Billing and Collection. Manager, or an affiliated or subsidiary entity of Manager with which Manager has an agreement to perform billing and collection services on behalf of Manager and Manager’s clients, shall bill and collect for all Provider Services furnished to the Provider’s patients. In furtherance thereof, and to the extent permitted under State, federal and the applicable law of the State of Illinois, Provider assigns to Manager Provider’s right to bill and collect for Provider Services, in Provider’s name and under the Provider’s billing numbers when applicable, except as prohibited by law. Provider agrees to cooperate with Manager, and to

execute such other documents and take such other actions as may be reasonably necessary or desirable, in connection with the efficient billing and collection for Provider Services. All amounts collected from Provider Services shall be paid to an account in the name of Provider. For efficiency and timeliness of Manager to provide Management Services, the parties agree that Manager should have access to funds deposited in Provider's financial account. Therefore, the parties shall take all steps necessary to establish a "sweep" with the financial institution where the account is located to transfer the funds, on a daily basis, to an account under Manager's control. All amounts collected from the provision of Provider Services shall belong to Provider; provided, however, Manager shall be allowed to deduct any fee it is owed from such collections and pay expenses on behalf of Provider without prior notice to, or approval of, Provider.

4. Fees. In consideration for the provision of the Management Services described in this Agreement, Provider shall pay to Manager the fees listed on Exhibit B, which is attached hereto and incorporated herein, which may be updated from time to time, but no more frequently than annually, as agreed by the Parties (collectively the "Fees"). Payment to Manager of the Fees is not intended, and shall not be construed, to permit Manager to share in Provider's fees for Provider Services or other services, but is intended and acknowledged to be the parties' negotiated agreement as to the reasonable fair market value of the items and services furnished by Manager pursuant to this Agreement considering the nature and extent of the services required and the risks assumed by Manager. In accordance with Section 3 above, the parties agree that any amounts owed to Manager pursuant to this Agreement can be deducted from collections related to the Provider Services from time to time as determined by Manager. Any remaining balance of collections shall be transferred to Provider in such form and frequency as agreed by the parties. Payment of the Fees due to Manager shall be paid after Provider pays all compensation for Professional Personnel (as defined herein) and Provider's expenses.

5. Term. This Agreement will commence on the Effective Date for a period of five (5) years and thereafter shall renew for successive one (1) year periods. This Agreement may be terminated by either party upon ninety (90) days' prior written notice to the other party. This Agreement also shall terminate upon any of the following events:

- (a) Material breach by either party that remains uncured thirty (30) days after written notice to the breaching party by the non-breaching party of such breach; provided, however, a party shall have only one (1) opportunity to cure a breach;
- (b) Mutual agreement of the parties set forth in writing;
- (c) In the event either party ceases to provide services, files for bankruptcy, enters receivership or executes an assignment for the benefit of creditors; and/or
- (d) In the event any term or condition of this Agreement is or becomes a violation of any law, regulation and/or policy, as determined by legal counsel for either party, and such term or condition cannot be revised or eliminated in a manner that is acceptable to both parties in writing pursuant to a thirty (30) day negotiation period.

Upon termination of this Agreement, neither party shall have any further obligations hereunder except for (a) obligations accruing prior to the date of termination; and (b) obligations, promises or covenants contained herein which expressly are made to extend beyond the term of

this Agreement. If this Agreement is terminated any time during the first twelve (12) months, the parties agree not to enter into an agreement for the same or similar services until natural expiration of that first twelve (12) month period.

6. **Insurance.** Provider shall, at all times during the term hereof and thereafter, at Provider's expense, maintain in effect a policy of professional liability insurance with respect to the Provider Services rendered by Provider with policy limits not less than \$1,000,000 per claim and \$3,000,000 in the aggregate. Upon termination of this Agreement for any reason or no reason, and if Provider's professional liability insurance is a "claims made" policy, Provider shall procure a tail or other form of continuing coverage to cover Provider for the provision of Provider Services provided during the term of this Agreement. Manager shall at all times during the term hereof and thereafter, at its expense, maintain general liability insurance coverage with respect to the Management Services provided by Manager. Provider and Manager agree to provide to each other, upon request, certificates of all insurance policies maintained by them as required in this Section 6, including proof of continuing coverage procured by Provider.

7. **Independence of Provider's Provider.** At all times acting under this Agreement, the parties understand and agree that all medical decisions, evaluations and treatment of patients designated by law to be the "practice of a licensed profession" shall solely be conducted by and the under the purview and control of Provider or those persons designated by Provider as allowed by law. Managers shall in no way interfere with and/or have any input on decisions involving the Provider Services in any form or fashion. Provider represents and warrants that Provider shall conduct all necessary examinations and assessments as may be required prior to providing any Provider Service.

8. **Provider Personnel.** Provider shall employ or engage and compensate all personnel providing Provider Services (collectively, the "Professional Personnel"). The manager may assist the Provider in selecting the Professional Personnel, but the ultimate hiring, direction and/or supervision of the Professional Personnel shall be Provider's sole responsibility. Manager will assist with payroll for Professional Personnel from Provider's account, and direct payment as needed for all financial and tax reporting related to such Professional Personnel on Provider's behalf. It is contemplated Physician will provide services as the Medical Director of Provider, as set forth in that certain Medical Director Agreement entered into by Physician and Provider.

9. **Compliance with Laws.** The parties at all times shall comply with all applicable laws, regulations, rules and/or ordinances governing the services to be provided pursuant to the terms herein. The parties will comply with all supervision and licensing requirements as may be necessary for the provision of Provider Services as set forth in relevant law and directives of the state where the Provider Services are deemed to be provided.

10. **Transfer Restriction.** As a condition to Manager agreeing to enter into this Agreement, Provider and Provider's owner each agrees to execute that certain "Restrictive Transfer Agreement." The obligations of this Section 10 shall be in full force and effect during the Term of this Agreement and shall survive the termination or expiration of this Agreement.

11. **Use of Names/Logos; Marketing.** Subject to the foregoing, Provider agrees to the use by Manager of its name, logo and/or any and all image or logo rights of the party for advertising or marketing purposes in connection with the Provider Services and uses herein. The

use of Provider's name, logo, image or trademark (whether formal or informal) shall be subject to relevant laws. Provider agrees to assist Manager with marketing services via mediums such as blogging, videos, interviews, and other marketing strategies that are in the best interests of Manager and Provider. All marketing will be in accordance with requirements of applicable laws.

12. Representations and Warranties.

(a) Provider hereby represents and warrants to Manager that, at all times while this Agreement is in effect:

(i) Provider will be duly organized, validly existing, in good standing, and authorized to engage in its business under the laws of the State of Illinois;

(ii) Professional Personnel are all, and will be at all times during the duration of this Agreement, licensed and authorized to engage in the profession for which they are practicing in the State of Illinois;

(iii) Neither Provider nor any of its Professional Personnel is bound by any obligation, restriction, or limitation, contractual or otherwise, to any other individual or entity that would prohibit or impede Provider or any of its Professional Personnel from undertaking and performing the duties and obligations under this Agreement, or from engaging Manager to perform services under this Agreement, and Provider, as well as each of the Professional Personnel, is free to enter into and perform under the provisions hereof; and

(iv) The individual executing this Agreement on behalf of Provider has full authority to bind Provider.

(a) Manager hereby represents and warrants to Provider that, at all times while this Agreement is in effect:

(i) Manager will be duly organized, validly existing, in good standing, and authorized to engage in its business under the laws of the State of Illinois;

(ii) Manager is not bound by any obligation, restriction, or limitation, contractual or otherwise, to any other individual or entity that would prohibit or impede Manager from undertaking and performing the duties and obligations under this Agreement, or from performing services under this Agreement, and Manager is free to enter into and perform under the provisions hereof; and

(iii) The individual executing this Agreement on behalf of Manager has full authority to bind Manager.

13. Indemnifications.

(a) Manager shall defend, indemnify and hold harmless Provider, its owners, managers, directors, employees, and/or agents (collectively, the “Provider Indemnified Parties”) from any claim, injury, damage, lawsuit, cause of action, liability or loss including, but not limited to, reasonable attorneys’ fees and court costs, arising out of, related to or in any manner occasioned by (i) performance and operations of Manager under this Agreement, (ii) incurrence of any liabilities, commitments or obligations of any kind or failure to pay any debts or other financial obligations incurred by or on behalf of the Provider under the terms of this Agreement; (iii) material breach of any term or condition of this Agreement by Manager; (iv) penalties or fines assessed for an alleged or actual violation of any federal, state or municipal regulation or law related to Manager’s services herein; and (v) any negligence, intentional act, omission or violation of any federal or state law, in whole or in part, by Manager.

(b) Provider shall defend, indemnify and hold harmless Manager, its owners, managers, directors, employees and agents (collectively, the “Manager Indemnified Parties”) from any claim, injury, damage, lawsuit, cause of action, liability or loss including, but not limited to, reasonable attorneys’ fees and court costs, arising out of, related to or in any manner occasioned by (i) performance and operations of Provider under this Agreement; (ii) material breach of any term or condition of this Agreement by Provider; (iii) penalties or fines assessed for an alleged or actual violation of any federal, state or municipal regulation or law related to Provider’s services herein; and (iv) any negligence, intentional act, omission or violation of any federal or state law, in whole or in part, by Provider.

(c) Each party shall notify the other immediately in writing of any claim of indemnification under this Section 13. The parties shall cooperate with each other in the investigation and disposition of any claim; provided, however, that nothing shall require a party to disclose any documents, records or communications that are protected under the peer review privilege, the attorney-client privilege or the attorney work-product privilege. The indemnification provisions in this Section 13 shall apply only to the extent not otherwise covered by insurance, and then only to such extent.

14. Non-Disparagement. The parties agree that in consideration of this Agreement and thereafter, the parties will not engage in any conduct or make any oral or written statement calculated to have the effect of undermining or disparaging the other or their reputation. However, the parties may give truthful and non-malicious testimony if lawfully compelled to do so by legal process.

15. Non-Solicitation. During the term of this Agreement, and for three (3) years following the termination for any reason, absent written consent of the other party, neither party shall, directly or indirectly, either alone or as a stockholder, member, partner, consultant, advisor, owner, associate, employee, contractor, creditor or in any other capacity, solicit, hire, attempt to solicit or hire, refer, enter into a contract to provide services, or participate in any attempt to solicit, refer, hire or contract with any individual who was an employee, independent contractor, or agent of the other party during the term of this Agreement.

16. Non-Competition. At all times during the term of this Agreement and for one (1) year after termination of this Agreement for any reasons, absent written consent of Manager, Provider agrees not to directly or indirectly, in one or a series of transactions, own, manage, operate, control, invest or acquire an interest in, or otherwise engage or participate in the business of, whether as a proprietor, partner, officer, employee, joint venture, investor, lessor, agent, representative, employee, lender, guarantor, or other participant for, itself or any business, individual or entity engaged in any service which Provider or Manager provided, within five (5) miles of any location where Provider offered medspa services during the term of this Agreement.

17. Confidentiality. Each party acknowledges that the other party has a legitimate and protectable interest in its trade secrets and confidential, proprietary business information (hereinafter referred to as the “Confidential Information”), which includes, but is not limited to, non-public financial, technical, sales, marketing, development, personnel, and other information, records, or data, including, without limitation, patient lists, supplier lists, trade secrets, designs, product formulations, product specifications or any other proprietary or confidential information, however recorded or preserved, whether written or oral. Each party covenants that it shall not at any time, whether during the term of this Agreement, or after the termination of such Agreement, without the prior, express, written approval of the other party in each instance, disclose, divulge, or in any other way reveal, or cause another to do so, any Confidential Information to any person, party or entity, directly or indirectly, except to the limited extent this may be necessary as part of this Agreement. In addition, neither party shall, for any purpose or reason, except within the scope of such party’s responsibilities under this Agreement, directly or indirectly, use or utilize any of the confidential Information for its own benefit, for the benefit of any third party, or for any purpose whatsoever. In connection with the performance of their obligations under this Agreement, both parties will have access to certain protected health information (“PHI”), as defined by the Health Insurance Portability and Accountability Act of 1996 (“HIPAA”). Each party covenants and agrees to maintain the confidentiality of all PHI and not to use or disclose such information except as may be required or permitted by applicable law. Each party hereby assures the other party that it will appropriately safeguard all PHI made available by, or obtained from, the other party. The parties will enter into a form of “Business Associate Agreement” contemporaneous with executing this Agreement. This Section 17 shall survive the termination of this Agreement for as long as allowed by law.

18. Covenant Acknowledgement. With respect to the covenants in Sections 14-17, the parties understand that these are restrictive covenants and fully agree to the reasonability thereof. If, for any reason, the covenants provided for above shall be deemed too extensive and therefore unreasonable, such covenants shall be reinterpreted to requalify the limitations provided therein so as to make said covenants enforceable, as long as the modifications to be made will not substantially defeat the original purposes of the parties hereto. If a party violates these covenants and the other party brings legal action for injunctive or other relief, the covenants shall be deemed to have the duration specified herein, computed from the date the relief is granted. A party breaching the covenants shall be responsible for any reasonable fees incurred by the other party related to enforcing the covenant (including actual reasonable attorney’s fees and court costs).

19. Assignment. Without the prior written consent of the other party, neither Provider nor Manager shall be permitted to assign, sublet, transfer, pledge or hypothecate this Agreement, or any interest therein. Consent to any of the foregoing prohibited acts applies only

in the given instance and is not a consent to any subsequent like act by either party.

20. Non-Waiver. No change or modification of this Agreement shall be valid unless the same is in writing and signed by both parties. No waiver of any provision of this Agreement shall be valid unless in writing and signed by the person or party to be charged.

21. Entire Agreement. This Agreement, and those referenced herein, constitutes the entire Agreement between Manager and Provider. The preambles of the Agreement and all exhibits to this Agreement are hereby incorporated herein and made a part hereof by this reference.

22. Notices. Service of all notices under this Agreement shall be sufficient if given in writing personally or mailed, via registered mail, to the party involved such address a party has on file for the other party or as each party may provide each other in writing from time to time. Any such notice mailed to such address shall be effective when deposited in the United States mail, duly addressed and with postage prepaid.

23. Gender; Number. Whenever the context of this Agreement requires, the masculine gender includes the feminine or neuter, and the singular number includes the plural. Wherever the word “Manager” is used herein, it shall include all assignees of Manager, and wherever the word “Provider” is used herein, it shall include all assignees of Provider.

24. Headings. The headings set forth herein are for convenience only and shall not be used in interpreting the text of the sections in which they appear.

25. Successors and Assigns. Subject to the restrictions set forth herein, this Agreement shall be binding upon and inure to the benefit of the successors and permitted assigns of the parties hereto.

26. Consent. Whenever the consent or approval of the Manager or Provider is required hereunder, such consent shall not be unreasonably withheld.

27. Governing Law. All questions concerning the construction, validity and interpretation of this Agreement and the performance of the obligations imposed by this Agreement will be governed by the internal laws, and not the law of conflicts, of the State of Illinois. If either party institutes any action arising out of or relating to this Agreement such suit must be brought in Cook County, Illinois.

28. Patient Records. Manager shall be required to maintain strict confidentiality of Provider’s patient information and records as may be required by law. All patient records maintained by Provider shall be the sole and exclusive property of Provider. Upon reasonable request while this Agreement is in-effect or after termination, Provider shall allow Manager access to the patient records and information for a proper lawful purpose. The parties intend at all times to abide by HIPAA and will execute a form of Business Associate Agreement contemporaneous with this Agreement.

29. Independent Contractor/Taxes. It is understood and agreed that because of parties’ status as independent contractors, neither shall have any obligation or responsibility for

the payment of unemployment compensation, workers' compensation, federal or state withholding taxes or any other payroll taxes with respect to amounts paid to the other or to provide any fringe benefits for or on behalf of the other.

30. Force Majeure. The Parties will be excused from performance under this Agreement if for any period they are prevented from performing any obligations pursuant hereto, in whole or in part, as a result of any Act of God, war, civil disturbance, court order, third party labor dispute, declaration of emergency, pandemic or other cause beyond their reasonable control.

31. Severability. If for any reason any provision hereof is held invalid, such invalidity shall not affect any other provision hereof not held invalid, and each such other provision shall to the full extent consistent with law continue in full force and effect. In place of any invalid provision, the parties shall add to this Agreement a similar but valid provision.

32. Survival. The provisions of this Agreement, except as otherwise expressly provided herein, shall continue to be binding upon the parties thereto and shall inure to the benefit of said parties, their respective heirs, personal representatives, successors and assigns.

33. Counterparts. This Agreement may be executed in any number of counterparts, each of which shall be deemed to be an original, and all of which when taken together shall be deemed to be one and the same instrument. Electronic, .pdf and/or facsimile versions of this Agreement shall be deemed the same as an original.

34. No Third-Party Rights. Nothing in this Agreement shall be construed as creating or giving rise to any rights in any third parties or any persons other than the parties hereto.

35. Amendment. This Agreement may not be amended, in whole or in part, without the written consent of both parties.

[THIS SPACE INTENTIONALLY LEFT BLANK; SIGNATURE PAGE FOLLOWS]

IN WITNESS WHEREOF, the parties have executed this Agreement on the day and year first above written.

MANAGER: Danielle Alcala-Glazier
Hello Gorgeous P.C

PROVIDER: Mukesh Arora

By: _____ **By:** _____

Its: _____ **Its:** _____

Date: _____ **Date:** _____

EXHIBIT A

MANAGEMENT SERVICES

Unless otherwise agreed to in writing by the parties, the Management Services shall consist of:

- (a) The supervision and coordination of the day-to-day non-medical business functions taking place in connection with Provider's operations;
- (b) The maintenance, custody and supervision of business records, papers, documents, ledgers, journals and reports relating to Provider's operations. All such records, papers, documents, ledgers, journals and reports shall be and remain the property of Provider;
- (c) The administration of accounting procedures, controls, forms and systems related to Provider's business operations;
- (d) The preparation of monthly, quarterly and annual financial reports, as appropriate, reflecting Provider's operations and the expenses incurred by Manager on behalf of Provider;
- (e) The financial planning for Provider's operations;
- (f) The processing and payment of accounts payable as such relate to the Provider's operations;
- (g) The provision and coordination of information technology systems and services related to Provider's operations;
- (h) Arranging for the provision of legal and risk management services related to Provider's operations;
- (i) The provision and processing of all employee record keeping and payroll accounting, including social security and other payroll tax reporting and insurance for all employees of Provider and for all other persons rendering services on behalf of Provider;
- (j) The coordination and administration of qualified retirement plans, group insurance benefits, and any other benefit programs adopted by Provider for its employees (if applicable);
- (k) The provision of support personnel required in connection with Provider's business operations, including administrative, bookkeeping, information technology, and general management personnel, and other personnel as may be deemed reasonably necessary by Manager to perform the Management Services hereunder (collectively, the "Support Personnel"). Manager shall (i) train, manage and supervise the Support Personnel; (ii) hire and fire the Support Personnel and determine and pay the salaries, fringe benefits, bonuses, health and disability insurance, workers' compensation insurance and any other benefits that each such individual shall receive; and (iii) determine and carry out any appropriate disciplinary action required to be taken against Support Personnel. For the avoidance of doubt, all Support Personnel will be employed by, or engaged as a consultant to, Manager, and such Support Personnel will not be employed or engaged directly by Provider;

(l) Manager shall assist Provider with marketing strategy and activities and shall provide or arrange for the provision of marketing, advertising, and public relations services on behalf of Provider. Manager shall implement such marketing and advertising programs including, without limitation, analyzing the effectiveness of such programs, preparing marketing materials, negotiating marketing contracts on Provider's behalf, and obtaining services necessary to produce and present such marketing programs. Manager and Provider agree that all marketing programs shall be conducted in compliance with all applicable standards of professional ethics, laws, and regulations governing advertising by the relevant profession and pursuant to Manager's consultation with Provider;

(m) The provision of such supplies and equipment as may be deemed reasonably necessary by the parties for the proper and efficient operation of Provider's business including, but not limited to: (i) non-clinical supplies and equipment (e.g., office supplies) necessary for the operation of Provider; and (ii) clinical supplies and equipment necessary for Provider's provision of Provider Services, as may be necessary. Provider shall have final authority in all clinical supply selections;

(n) Manager shall bill or arrange for billing support services for all Provider Services performed by or through Provider. Provider agrees to allow Manager, or its designee, full access to the portions of its paper records and/or electronic medical record system related to the Provider Services at all times during the term of this Agreement and following termination so as to allow Manager to fulfill its obligations hereunder. Manager will assist Provider with addressing electronic claim error edits, filing of appeals, managing audits, and any other issues which relate to billing. Manager shall work with Provider on medical record auditing and chart review to assure full regulatory compliance. Auditing shall be performed at regular intervals during business hours as agreed to by the parties; and

(o) Such other duties as agreed by the parties from time to time.

EXHIBIT B

MANAGEMENT FEE

MONTHLY MANAGEMENT FEE: Provider shall pay Manager the sum of fifteen hundred Dollars (\$1500) per month.

REIMBURSEMENT: Provider shall reimburse Manager for any expenses incurred on Provider's behalf that are not otherwise intended to be covered as part of the Fees.

FEE PAYMENT: The amounts set forth herein shall be paid in such form and method as agreed by the parties and prorated for any period less than a month. In the event that there are insufficient funds in any given month from collections related to the Provider Services to pay all fees due Manager, the parties agree that any unpaid amount shall roll-over and be paid in the following month(s) until paid in full. Manager acknowledges and agrees that, except as expressly set forth herein, (i) the obligations to pay fees, including the Management Fee, or to reimburse expenses under the Agreement are obligations of the Provider, and (ii) the owner of Provider shall have no personal liability for such fees or expenses.

BUSINESS ASSOCIATE AGREEMENT

THIS BUSINESS ASSOCIATE AGREEMENT (this “**Agreement**”), effective as of ____ Aug 1st, 2026 (the “Effective Date”), is entered into by and between Hello Gorgeous P.C.(“**Covered Entity**”) and Midwest Lake Medical Center Crystal Lake SC IL 60014 (“**Business Associate**”), to implement and comply with the requirements of the Health Insurance Portability and Accountability Act of 1996 (“**HIPAA**”), 42 U.S.C. 201 et seq. (42 U.S.C. 1320d-2) and the Health Information for Economic and Clinical Health Act (the “**HITECH Act**”), Pub. L. No. 111-5 and their corresponding regulations, 45 C.F.R. Parts 160, 162 and 164 – as they may be amended or modified from time to time (collectively, with HIPAA and the HITECH ACT, the “**HIPAA Rules**”).

1. DEFINITIONS

1.1 Catch-all definition:

The following terms used in this Agreement shall have the same meaning as those terms in the HIPAA Rules, regardless of whether such terms are capitalized herein: Breach, Data Aggregation, Designated Record Set, Disclosure, Health Care Operations, Individual, Minimum Necessary, Notice of Privacy Practices, Protected Health Information, Required By Law, Secretary, Security Incident, Subcontractor, Unsecured Protected Health Information, and Use.

1.2 Specific definitions:

(a) Business Associate. ”Business Associate” shall generally have the same meaning as the term “Business Associate” at 45 CFR 160.103, and in reference to the party to this Agreement, shall be as defined herein.

(b) Covered Entity. ”Covered Entity” shall generally have the same meaning as the term “Covered Entity” at 45 CFR 160.103, and in reference to the party to this Agreement, shall be as defined herein.

2. OBLIGATIONS AND ACTIVITIES OF BUSINESS ASSOCIATE

2.1 Business Associate shall:

(a) Not use or disclose protected health information other than as permitted or required by the Agreement or as required by law;

(b) Use appropriate safeguards, and comply with Subpart C of 45 CFR Part 164 with respect to electronic protected health information, to prevent use or disclosure of protected health information other than as provided for by the Agreement;

(c) Within ten (10) days of discovery, report to Covered Entity any use or disclosure of protected health information not provided for by the Agreement of which it becomes aware, including breaches of unsecured protected health information as required at 45 CFR 164.410, and any security incident of which it becomes aware;

(d) In accordance with 45 CFR 164.502(e)(1)(ii) and 164.308(b)(2), if applicable, ensure that any subcontractors that create, receive, maintain, or transmit protected health

information on behalf of the Business Associate agree to the same restrictions, conditions, and requirements that apply to the Business Associate with respect to such information;

(e) Make available protected health information in a designated record set to Covered Entity as necessary to satisfy Covered Entity's obligations under 45 CFR 164.524 within ten (10) days of any such request;

(f) Make any amendment(s) to protected health information in a designated record set within ten (10) days as directed or agreed to by the Covered Entity pursuant to 45 CFR 164.526, or take other measures as necessary to satisfy Covered Entity's obligations under 45 CFR 164.526;

(g) Maintain and make available the information required to provide an accounting of disclosures to the Covered Entity as necessary to satisfy Covered Entity's obligations under 45 CFR 164.528 within ten (10) days of any such request;

(h) To the extent Business Associate is to carry out one or more of Covered Entity's obligation(s) under Subpart E of 45 CFR Part 164, comply with the requirements of Subpart E that apply to the Covered Entity in the performance of such obligation(s); and

(i) Make its internal practices, books, and records available to the Covered Entity and/or the Secretary for purposes of determining compliance with the HIPAA Rules.

3. PERMITTED USES AND DISCLOSURES BY BUSINESS ASSOCIATE

(a) Business associates may only use or disclose protected health information as necessary to perform the services set forth in the agreement entered into between the parties ("Underlying Agreement").

(b) Business Associates may use or disclose protected health information as required by law.

(c) Business Associate shall make uses and disclosures and requests for protected health information consistent with Covered Entity's minimum necessary policies and procedures.

(d) Business associates may not use or disclose protected health information in a manner that would violate Subpart E of 45 CFR Part 164 if done by Covered Entity, except for the specific uses and disclosures set forth in this Agreement.

(e) Business Associate may use protected health information for the proper management and administration of the Business Associate or to carry out the legal responsibilities of the Business Associate.

(f) Business Associate may provide data aggregation services relating to the health care operations of the Covered Entity.

4. PROVISIONS FOR COVERED ENTITY TO INFORM BUSINESS ASSOCIATE OF PRIVACY PRACTICES AND RESTRICTIONS

(a) Covered Entity shall notify Business Associate of any limitation(s) in the notice of privacy practices of Covered Entity under 45 CFR 164.520, to the extent that such limitation may affect Business Associate's use or disclosure of protected health information.

(b) Covered Entity shall notify Business Associate of any changes in, or revocation of, the permission by an individual to use or disclose his or her protected health information, to the extent that such changes may affect Business Associate's use or disclosure of protected health information.

(c) Covered Entity shall notify Business Associate of any restriction on the use or disclosure of protected health information that Covered Entity has agreed to or is required to abide by under 45 CFR 164.522, to the extent that such restriction may affect Business Associate's use or disclosure of protected health information.

5. PERMISSIBLE REQUESTS BY COVERED ENTITY

Covered Entity shall not request Business Associate to use or disclose protected health information in any manner that would not be permissible under Subpart E of 45 CFR Part 164 if done by Covered Entity, except if the Business Associate will use or disclose protected health information for, and the agreement includes provisions for, data aggregation or management and administration and legal responsibilities of the Business Associate.

6. TERM AND TERMINATION

(a) Term. The Term of this Agreement shall be effective as of the Effective Date and shall terminate when all protected health information is no longer in the possession of Business Associate or on the date this Agreement terminates for cause as authorized in paragraph (b) of this Section, whichever is sooner.

(b) Termination for Cause. Either party may terminate this Agreement if a party determines the other party has violated a material term of the Agreement and the breaching party has not cured the breach or ended the violation within the time period agreed upon between the parties.

(c) Obligations of Business Associate Upon Termination. Upon termination of this Agreement for any reason, Business Associate, with respect to protected health information received from Covered Entity, or created, maintained, or received by Business Associate on behalf of Covered Entity, shall:

(i) Retain only that protected health information which is necessary for Business Associate to continue its proper management and administration or to carry out its legal responsibilities;

(ii) Destroy the remaining protected health information that the Business Associate still maintains in any form;

(iii) Continue to use appropriate safeguards and comply with Subpart C of 45 CFR Part 164 with respect to electronic protected health information to prevent use or disclosure of the protected health information, other than as provided for in this Section, for as long as Business Associate retains the protected health information;

(iv) Not use or disclose the protected health information retained by Business Associate other than for the purposes for which such protected health information was retained and subject to the same conditions set out at Section 3 which applied prior to termination; and

(v) Destroy the protected health information retained by Business Associate when it is no longer needed by Business Associate for its proper management and administration or to carry out its legal responsibilities.

(d) Survival. The obligations of Business Associate under this Section shall survive the termination of this Agreement.

7. INDEMNIFICATION

Each Party (the “Indemnifying Party”) shall indemnify, defend and hold harmless the other Party and the other Party’s affiliates (the “Indemnified Parties”), from and against any and all loss, expense, damage or injury (including, without limitation, all costs and reasonable attorneys’ fees) that the Indemnified Parties may sustain as a result of, or arising out of (a) any unauthorized use, disclosure or breach of protected health information by the Indemnifying Party or its agents or subcontractors; and (b) any negligence or wrongful acts or omissions by the Indemnifying Party or its agents or subcontractors, including, without limitation, failure to perform its obligations under the HIPAA Rules. Notwithstanding the foregoing, nothing in this Section 7 shall limit any rights any of the Indemnified Parties may have to additional remedies under the Underlying Agreement or under applicable law for any acts or omissions of the Indemnifying Party or its agents or subcontractors.

8. MISCELLANEOUS

(a) Regulatory References. A reference in this Agreement to a section in the HIPAA Rules means the section as in effect or as amended.

(b) Amendment. The Parties agree to take such action as is necessary to amend this Agreement from time to time as is necessary for compliance with the requirements of the HIPAA Rules and any other applicable law.

(c) Interpretation. Any ambiguity in this Agreement shall be interpreted to permit compliance with the HIPAA Rules.

(d) Governing Law. Except to the extent preempted by federal law, this Agreement shall be governed by and construed in accordance with the laws of the State of Illinois.

(e) Counterparts. This Agreement may be executed in multiple counterparts, by facsimile, .pdf or otherwise, each of which shall be an original, but all of which together shall constitute one and the same instrument.

(a) Applicability. This Agreement applies only if and to the extent that Business Associate is a “business associate” to the Covered Entity as such phrase is defined in the HIPAA Rules. Business Associate does not, by signing this Agreement, concede that it is a business associate pursuant to the HIPAA Rules.

IN WITNESS WHEREOF, the parties hereto have executed this Business Associate Agreement as of the date first above written.

[THIS SPACE INTENTIONALLY LEFT BLANK; SIGNATURE PAGE FOLLOWS]

COVERED ENTITY:

**MANAGER: Danielle Alcala-Glazier
Hello Gorgeous P.C**

BUSINESS ASSOCIATE:

...Midwest lake medical Center SC. Crystal lake
IL 60014

By:

By: _____

Name: _____
_DanielleAlcala-Glazier_____

Name: _____MukeshAroraMD
MBA_____

Title: _____
____Manager_____

Title: _____MedicalDirector
